

Court No. - 3

Case :- WRIT - C No. - 27451 of 2021

Petitioner :- Smt. Kudusia Begum

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mohammad Yaseen

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard learned counsel for the parties.

Undisputedly, the final assessment order dated 16.07.2021 has come into existence after dealing with the objections filed by the petitioner to the provisional assessment.

Against such final assessment order, petitioner has statutory remedy of filing an appeal under the Electricity Supply Code, 2005.

In view of the above, no interference is warranted by this Court under Article 226 of the Constitution of India.

The writ petition is accordingly **dismissed** on account of alternate statutory remedy as disputed questions of fact are difficult to be gone into, at this stage.

Order Date :- 23.10.2021

Prakhar